

Court No. - 47

Case :- CRIMINAL MISC. WRIT PETITION No. - 18525 of 2025

Petitioner :- Anuradha

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Deepak Kumar Pandey, Mukesh Kumar Pandey

Counsel for Respondent :- G.A., Sushil Kumar Pandey

Hon'ble Siddharth, J.

Hon'ble Santosh Rai, J.

Shri Shekh Sultan Momin holding brief of Shri Sushil Kumar Pandey, learned counsel for the respondent nos. 4 and 5 is present.

Put up this case on 1.9.2025 as a fresh case.

In the meantime, learned counsel for the respondent nos. 4 and 5 and learned A.G.A. may file counter affidavit.

Order Date :- 23.8.2025

Atul kr. sri.



2025:AHC:152941-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

CRIMINAL MISC. WRIT PETITION No. - 18525 of 2025

Anuradha

.....Petitioner(s)

Versus

State Of U.P. And 4 Others

.....Respondent(s)

Counsel for Petitioner(s)	: Deepak Kumar Pandey, Mukesh Kumar Pandey
Counsel for Respondent(s)	: G.A., Sushil Kumar Pandey

Court No. - 47

**HON'BLE SIDDHARTH, J.
HON'BLE SANTOSH RAI, J.**

Heard learned counsel for the petitioners, Sri Sushil Kumar Pandey, learned A.G.A. for the State and perused the record.

By means of the present writ petition under Article 226 of the Constitution of India, the petitioner is assailing the legality and validity of the FIR dated 07.01.2023 registered as Case Crime No- 0028 of 2023, under Sections 135 of Indian Electricity Act, Police Station-Anti Power Theft, Mirzapur, District Mirzapur, in utter violation and without any iota of evidence as contemplated under section 126 and 135 of Electricity Act, 2003 and section 8.1 of the Electricity Supply Code, 2005.

Submission made by learned counsel for the petitioner is that the present FIR is an outcome of dispute between the parties. The offences are punishable under 7 years or less than 7 years.

The Supreme Court in the case of **Arnesh Kumar v. State of Bihar, (2014) 8 SCC 273** has laid down guidelines for arresting a person, which are being reproduced hereinbelow:-

"Our endeavour in this judgment is to ensure that police officers do not arrest accused unnecessarily and Magistrate do not authorize detention casually and mechanically. In order to ensure what we have observed above, we give the following direction:

All the State Governments to instruct its police officers not to

automatically arrest when a case under Section 498-A of the IPC is registered but to satisfy themselves about the necessity for arrest under the parameters laid down above flowing from Section 41 Cr.P.C.;

All police officers be provided with a check list containing specified sub-clauses under Section 41(1)(b)(ii);

The police officer shall forward the check list duly filed and furnish the reasons and materials which necessitated the arrest, while forwarding/producing the accused before the Magistrate for further detention;

The Magistrate while authorizing detention of the accused shall peruse the report furnished by the police officer in terms aforesaid and only after recording its satisfaction, the Magistrate will authorize detention;

The decision not to arrest an accused, be forwarded to the Magistrate within two weeks from the date of the institution of the case with a copy to the Magistrate which may be extended by the Superintendent of police of the district for the reasons to be recorded in writing;

Notice of appearance in terms of Section 41A of Cr.PC be served on the accused within two weeks from the date of institution of the case, which may be extended by the Superintendent of Police of the District for the reasons to be recorded in writing;

Failure to comply with the directions aforesaid shall apart from rendering the police officers concerned liable for departmental action, they shall also be liable to be punished for contempt of court to be instituted before High Court having territorial jurisdiction.

Authorizing detention without recording reasons as aforesaid by the judicial Magistrate concerned shall be liable for departmental action by the appropriate High Court.

We hasten to add that the directions aforesaid shall not only apply to the cases under Section 498-A of the I.P.C. or Section 4 of the Dowry Prohibition Act, the case in hand, but also such cases where offence is punishable with imprisonment for a term which may be less than seven

years or which may extend to seven years; whether with or without fine."

In the recent judgment in the case of MD. Asfak Alam Vs. The State of Jharkhand and another passed in Criminal Appeal No. (S) 2207 of 2023 decided on 31.07.2023, the Apex Court has reiterated the guidelines given in the case of Arnesh Kumar (supra).

Taking into account the totality of the fact and circumstances of the case and the in the light of the ratio laid down in the case of Arnesh Kumar (supra) and reiterated in the case of MD. Asfak Alam (supra), the freedom of the petitioners is protected, provided if the I.O. of the case gives notice to them as provided under Section 35 of B.N.S.S., and summon the petitioners in this case, petitioners are obliged to render their fullest cooperation in the investigation.

It is made clear that if some credible material is brought on record during investigation against the petitioners, then only the I.O. of the case after recording its reason may affect the arrest of the petitioners, strictly adhering to the guidelines provided in the case of Arnesh Kumar (supra) and MD. Asfak Alam (supra). It is also directed that the I.O. of the case shall gear up the investigation and conclude the same preferably within a period of 60 days from today and submit its report u/s 193(3) B.N.S.S., in the court of concerned Magistrate.

With the aforesaid observations, the instant writ petition stands disposed off.

(Santosh Rai,J.) (Siddharth,J.)

September 1, 2025

Abhishek